



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 25, 2024

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202200762 (Incident Date: October 25, 2021) regarding Sergeant Donald Pak,
Tax No. 930901 (DADS No. 2023-27926)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that no disciplinary action is warranted in connection with the substantiated allegation against Sergeant Pak.

In this matter, Sergeant Pak responded to the scene of what was reasonably determined to be a violent domestic assault where the alleged perpetrator of the assault was barricaded inside the victim's apartment. The victim had described the assault to the initial responding officers, explaining that the assailant had bitten her and attempted to strangle her, and she requested that the perpetrator be removed from her apartment. Sergeant Pak initially tried to reason with the barricaded individual, and followed appropriate protocols by requesting a Duty Captain and the Emergency Service Unit to respond to the scene. Once the Duty Captain and Emergency Service Unit personnel arrived on the scene, Sergeant Pak was no longer in charge and was not in a position to supervise, and therefore did not actually supervise the Emergency Service Unit's entry into the apartment.

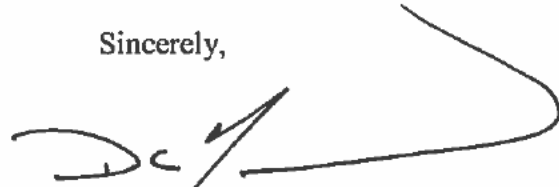
It must be noted that the entry into an apartment in order to arrest a non-resident individual who just assaulted the resident, causing her to flee from her own home, is not the type of "warrantless" entry that is presumptively unreasonable. Rather, entry into an individual's home under these circumstances is abundantly reasonable and in fact, necessary, in order to effectuate the arrest of the trespassing perpetrator of the assault.

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Therefore, based on the above, and the totality of the circumstances, the Police Commissioner directs that no disciplinary action be taken against Sergeant Pak for the substantiated allegation.

Sincerely,

A handwritten signature in black ink, appearing to read 'A. Marino', with a long horizontal flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office